

ONE HUNDRED NINTH LEGISLATURE

SECOND SESSION

LEGISLATIVE RESOLUTION 421

Introduced by Storer, 43; Andersen, 49; Bosn, 25; Hardin, 48; Kauth, 31;
Lippincott, 34; Lonowski, 33; Sorrentino, 39; von Gillern, 4.

PURPOSE: The purpose of this resolution is to propose an interim study to examine the current status of artificial intelligence legislation occurring at the state and federal levels to address risks to public safety and to determine what action Nebraska should take to address such risks.

Recent events and statements from artificial intelligence companies and independent experts indicate that there are potential risks to public safety and children that could be caused by artificial intelligence. Artificial intelligence companies are working to create protections against such risks.

LB1083 was introduced in the One Hundred Ninth Legislature, Second Session, to adopt the Transparency in Artificial Intelligence Risk Management Act. Such act included child safety and public safety provisions intended to cover the most widely used chatbots and the most advanced artificial intelligence systems and included requirements for select companies to publish how such companies test for and protect against severe risks to children and the public. Further, the legislation, if passed, would have required companies to self-report to the Nebraska Attorney General if an advanced artificial intelligence system acts in certain dangerous ways and harms a child or causes a public safety incident. The legislation would also have given the Attorney General the authority to enforce these requirements.

This study shall examine the status of federal and state legislation relating to artificial intelligence in order to facilitate the development of future Nebraska legislation to address the evolving complexity of risks posed by uses of artificial intelligence.

NOW, THEREFORE, BE IT RESOLVED BY THE MEMBERS OF THE ONE HUNDRED NINTH LEGISLATURE OF NEBRASKA, SECOND SESSION:

1. That the Banking, Commerce and Insurance Committee of the Legislature shall be designated to conduct an interim study to carry out the purposes of this resolution.

2. That the committee shall upon the conclusion of its study make a report of its findings, together with its recommendations, to the Legislative Council or Legislature.